

**Inheritance, Not Invention: The Foreign Agent Disclaimer and Post-Soviet Conspiratorial
Memory**

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Since 2022, the Kremlin has mandated that every article, video, public statement, or other adjacent form of media produced by entities of a particular designation be furnished with the same impossible-to-avoid all-capitals warning:

ДАННОЕ СООБЩЕНИЕ (МАТЕРИАЛ) СОЗДАНО И (ИЛИ) РАСПРОСТРАНЕНО ИНОСТРАННЫМ СРЕДСТВОМ МАССОВОЙ ИНФОРМАЦИИ, ВЫПОЛНЯЮЩИМ ФУНКЦИИ ИНОСТРАННОГО АГЕНТА, И (ИЛИ) РОССИЙСКИМ ЮРИДИЧЕСКИМ ЛИЦОМ, ВЫПОЛНЯЮЩИМ ФУНКЦИИ ИНОСТРАННОГО АГЕНТА.¹

In English: “This message (material) was created and/or distributed by a foreign mass media outlet acting as a foreign agent, and/or by a Russian legal entity acting as a foreign agent. This textual artifact is strange in form, as the Russian state opts not to silence the entity in question, nor does it provide a counter-publication when initially assigning this designation. A disclaimer of this kind might be most effective if the audience is already predisposed to believe the accusation it carries. This essay argues that the foreign agent disclaimer succeeds as compelled speech not because the Kremlin propagandized Russians into accepting a foreign idea, but because it stamps official approval on a tendency toward suspicion that was already present in post-Soviet kitchens decades before the law was enacted.

The most recent, useful answer comes from Eliot Borenstein, whose argument in *Plots against Russia* characterizes Putin-era public discourse as one in which “conspiracy is a meta-language.”² The metaphor is generative, and this essay takes it rather seriously: if conspiracy operates as a sort of language under Putin, then asking where its grammar originates, i.e., who learned it first and what the state inherits instead of invents, becomes an important question. Borenstein himself traces three “informational ecosystems” through which Russian

¹ Compelled disclosure required for entities designated under Russian Federal Law No. 255-FZ (2022), “On Control over the Activities of Persons Under Foreign Influence,” and predecessor statutes regarding “foreign agent” status. Translation by <https://www.deepl.com/>.

² Eliot Borenstein, *Plots against Russia: Sincerity, Conspiracy, and Propaganda* (Ithaca, NY: Cornell University Press), 181.

conspiratorial thoughts have moved throughout the past 50-odd years: a late-Soviet phase forged by informational scarcity and rumors, a Perestroika-and-Yelstin phase due to information overload that was not prepared for in advance, and a Putinist phase, in which the state has coopted conspiratorial logic so thoroughly, in Borenstein's words, "that all symbolic exchange of truth value collapses into false equivalencies."³ The regime's innovation lies in engaging conspiracy, rather than denying it. As Borenstein says, "feeding the beast is in the regime's best interest."⁴ Though Borenstein doesn't address the foreign agent disclaimer directly, it is a clear example of what his framework describes: a bureaucratic crystallization of a meta-language, a legal form that names dissent as foreign infiltration without having to waste time arguing the case.

By organizing his account around the state's ever-increasing discursive sophistication, which culminated in the Kremlin's media operations during the 2010s, Borenstein risks suggesting that the conspiratorial reading of dissent is something done to Russian audiences by an effective propaganda apparatus, rather than something this apparatus draws on. The grammar of foreign-hand suspicion predates the period Borenstein is tracing; Tsarist Russia produced the *Protocols of the Elders of Zion*, and the Stalinist "wreckers" and internal enemies during the 1930s were already accused of sabotage on behalf of foreign entities.⁵ Borenstein himself notes these antecedents in passing, but the weight of his argument falls on what the Putin-era state has done with this inheritance rather than the depth of the inheritance it is activating. The Foreign Agent Law, on his account, looks top-down: the Kremlin teaches its citizens to see foreign manipulation everywhere, and the disclaimer is one successful instrument of this lesson. Svetlana Alexievich's *Secondhand Time* complicates this picture. The voices captured by Alexievich

³ Borenstein, *Plots against Russia*, 171, 181.

⁴ Borenstein, *Plots against Russia*, 181–182.

⁵ Borenstein, *Plots against Russia*, 172, 176.

between 1991 and 2012 demonstrate that the Foreign Agent Law formalized an everyday habit of interpretation already common within post-Soviet life, present in kitchens and on street corners long before the law was enacted.

The testimonies recorded by Alexievich are striking because they were [presumably] unprompted. One of her interviewees, recalling the end of the USSR, says, “Gorbachev is an American secret agent...a freemason...He betrayed communism.”⁶ This same individual continues, with a total lack of self-consciousness about the genre of accusation:

The CIA... We’re already being controlled by the Americans... They must have paid Gorbachev a tidy sum. Sooner or later, he’ll see his day in court. I just hope that Judas lives to feel the brunt of his nation’s rage. I would gladly take him out to the Butovo Firing Range and shoot him in the back of the skull myself.⁷

What is notable is not that one individual reached for these tropes, as anti-Gorbachev sentiment was widespread, and the Butovo reference is unsurprising for its rhetorical violence, but how easily this explanation came to hand. The collapse of the Soviet Union is intelligible to this person through a familiar set of vocabulary: foreign payments, control, and treason. The conceptual machinery the Foreign Agent Law deploys was already in action.

Further, this is not a single eccentric voice. Throughout the testimonies collected by Alexievich, what is consistent isn’t one specific conspiracy theory, but rather, a pattern of explanation: when the country fractures and the empire dissolves, supermarkets fill up with unfamiliar goods, so the cause is searched for outside. “Someone felt the need to put an end to it,” said another interviewee, of Soviet civilization, before naming the said person as “The CIA.”⁸ Another elaborates, saying, “The West has always seen Russia as an enemy, a looming threat. It’s a thorn in their side. Nobody wants a strong Russia, with or without the communists.

⁶ Svetlana Alexievich, *Secondhand Time: The Last of the Soviets*, trans. Bela Shayevich (New York: Random House, 2016), 28.

⁷ Alexievich, *Secondhand Time*, 28.

⁸ Alexievich, *Secondhand Time*, 28.

The world sees us as a storehouse that they can raid for oil, natural gas, timber, and base metals.”⁹ These aren’t the words of state propagandists; they are the words of citizens trying to explain a disaster to themselves. Borenstein himself noted that “everyday conspiricism could even be viewed as defining the late Soviet subject position.”¹⁰ Still, his attention lies elsewhere: the regime’s later mastery of conspiratorial broadcasting. The order of operations matters more than this allows. These kitchen voices are not echoes of a state that has not yet fully formed its meta-language; they are the foundation on which that meta-language later builds.

There is a related continuity in posture: Alexievich’s late-Soviet interviewees described themselves as “kitchen dissidents,” people “going about [their] daily lives with [their] fingers crossed behind [their] backs.”¹¹ This is a form of compelled performance— a public mask not aligning with the face worn in private settings, maintained because the speaker assumes that there is always someone, somewhere, listening to them. The foreign agent disclaimer asks for something similar from various organizations, requiring them to display, on their own products, a label they presumably do not agree with, but must implement to avoid further penalty or worse designations. The cultural infrastructure making this disclaimer livable rather than absurd was already in existence. Russians who came of age in apartments where one always glanced at the ceiling light before saying something controversial recognize compulsory self-labeling as a familiar kind of demand, not a new one.

This is precisely what makes the Kremlin’s disclaimer an effective tool. The text does not argue, but points to an argument a reader is presumed to have already accepted. The label’s logic depends on prior intuition that any voice critical of Russian state power could potentially be an instrument of their enemies, as well as the cultural availability of so-called “foreign influence” as

⁹ Alexievich, *Secondhand Time*, 28.

¹⁰ Borenstein, *Plots against Russia*, 173.

¹¹ Alexievich, *Secondhand Time*, 26.

a sufficient explanation for any political disagreement. Alexievich's testimonies suggest this intuition has been culturally available for at least one generation, and the peculiar success of compelled self-labeling, in other words, depends on what the label is read into: a cultural landscape in which suspicion of foreign hands is the path of least resistance.

This reading also explains why the expansion of the law since 2022 has not undermined its credibility, even after Russia removed the requirement of genuine foreign funding and broadened "foreign influence" to be almost without bounds. LGBTQ+ advocates, environmental groups, anti-war journalists, and individual artists alike do not need plausible foreign ties to be designated.¹² Memorial, a dissident-founded human-rights organization documenting Soviet political repression, was liquidated by the Russian Supreme Court in December 2021, with successor projects being labeled as foreign agents. Only two years later, in November 2023, the same court ruled that the "international LGBTQ social movement" was an extremist organization, despite the absence of any such organization in the institutional sense.¹³ The disclaimer also operates as the first rung of a graduated system. Outlets refusing to comply, such as the independent news organization *Meduza*—designated a foreign agent in 2021 and escalated to "undesirable organization" in January 2023 after relocating to Latvia and refusing to utilize 255-FZ's disclaimer—find themselves removed from Russian territory entirely, with any cooperation criminalized.¹⁴ Every designation works the same way as the disclaimer: it invokes a

¹² Human Rights Watch, "Russia: New Restrictions for 'Foreign Agents,'" December 1, 2022, <https://www.hrw.org/news/2022/12/01/russia-new-restrictions-foreign-agents>.

¹³ Andrew Roth, "Russian Court Orders Closure of Country's Oldest Human Rights Group," The Guardian, December 28, 2021, <https://www.theguardian.com/world/2021/dec/28/russian-court-memorial-human-rights-group-closure>; Human Rights Watch, "Russia: Supreme Court Bans 'LGBT Movement' as 'Extremist,'" November 30, 2023, <https://www.hrw.org/news/2023/11/30/russia-supreme-court-bans-lgbt-movement-extremist>.

¹⁴ The Moscow Times, "Russia Slaps Independent Media Outlet Meduza With 'Undesirable' Label," January 26, 2023, <https://www.themoscowtimes.com/2023/01/26/russia-slaps-independent-media-outlet-meduza-wi>

category whose evidentiary content is functionally equivalent to decoration. The law no longer pretends to be applied under evidence; it tracks suspicion, and suspicion needs no proof. The 2022 amendments, which on a strict reading should have voided the credibility of the law, instead served to extend its purview. They could do so simply because the relevant audience was never asking if an entity labeled “foreign agent” actually received foreign money, instead asking if this designation made sense, i.e., if it fit the available cultural frame. By the standards of the testimonies collected by Alexievich, it almost always does.

Borenstein’s own discussion of the Dulles Plan clarifies how wholly the foreign-agent frame predates its formalization in law. The Dulles Plan was a fabricated speech in which the former CIA director, Allen Dulles, allegedly outlined a covert campaign to corrupt Russia’s youth, demoralize her population, and work to dissolve the country from within. This Plan has circulated in Russian discourse since the 1970s, attached at various points to Soviet novels, late-Soviet miniseries, and post-Soviet conspiratorial newspapers.¹⁵ What was so notable about the Plan is that it imagined exactly the kind of operation the Foreign Agent Law now claims to detect: a network of domestic entities, funded or coordinated by external actors, whose ostensibly cultural or journalistic activities function as a slow-acting weapon. The law doesn’t need to prove any “foreign agent” organization is doing this; instead, it only needs to be intelligible against a familiar story in which these events are always occurring. If a Russian reader sees the disclaimer on a Meduza article, the work of interpretation has already been completed through decades of cultural reception.

[th-undesirable-label-a80055](#); International Press Institute, "Meduza Declared an 'Undesirable Organization' in Russia," January 27, 2023, <https://ipi.media/alerts/meduza-declared-an-undesirable-organization-in-russia/>.

¹⁵ Borenstein, *Plots against Russia*, 174–176.

Borenstein is correct that the Putin-era government has performed an exceptional discursive achievement, and his description of conspiracy as a “meta-language” encapsulates something that the foreign agent regime exemplifies: a form of public speech operating through gestures over arguments, in which “everything becomes conspiracy, including the attempt to expose conspiracy.”¹⁶ Where Borenstein’s account needs adjustment is in how this meta-language was constructed. It is less of a top-down regime achievement than it is a ratification, in that it was a state-led formalization of habits the Russian population already possessed. The Foreign Agent Law and its mandatory disclaimer are successful not due to overwriting how Russians read dissent, but by validating, with the authority of legal form, a way of reading that was already in application.

There is a more significant point here regarding what state speech is and isn’t capable of doing. Borenstein’s analysis is strongest while describing the state’s active manipulations of media, whether it be the NTV mockumentaries, the engineering ambiguity of fact and counter-fact productions like *Anatomiia protesta*.¹⁷ But effective state speech tends not to produce interpretive frames from nothing; it tends to ratify frames that are already culturally available, lending them the additional weight of being official. The Alexievich’s kitchen monologues, including the interviewee saying, “Our time comes to us secondhand,”¹⁸ are not the Putin regime’s creations, but their inheritance. The foreign agent disclaimer is intelligible against this inheritance, and without, unintelligible.

To return to the foreign agent disclaimer that opened this paper: the unusual form of forced speech it takes falls away once one reads it as the culmination of a much older way of thinking. Every news outlet applying the warning is essentially expected to participate in a

¹⁶ Borenstein, *Plots against Russia*, 181–182.

¹⁷ Borenstein, *Plots against Russia*, 181.

¹⁸ Alexievich, *Secondhand Time*, 11.

familiar practice, not some fresh act of accusation of wrongdoing, never before seen. The state does not claim to have discovered foreign influence; instead, it is categorizing an individual or organization as something whose explanatory power has been found within Russian conversation for decades. Borenstein's meta-language thesis captures the form of this practice, while Alexievich's voices reveal its depth. The plot against Russia, in the Foreign Agent's Law's working assumption, does not have to be proven. Just remembered.

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